

UPDATE : Briefing Note for Courtyard Owners 19 July 2014

From: Jonathan Pope – CMC Company Secretary

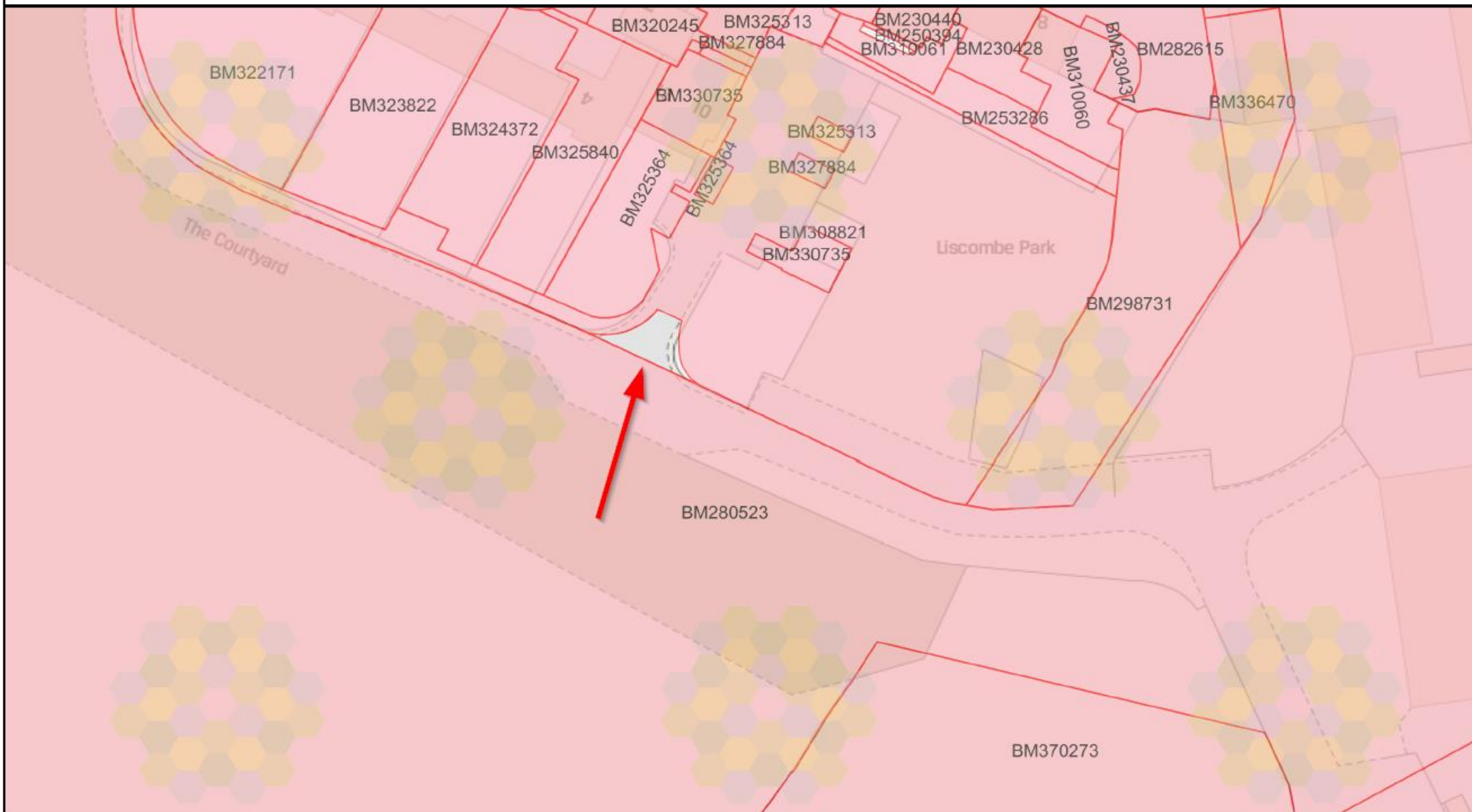
LAND REGISTRY – REGISTRATION OF THE COMMUNAL LAND AND DEFECTS IN INDIVIDUAL OWNERSHIP TITLES etc.

This is an UPDATE for all owners in preparation for the meeting on **Sunday 20th July at 7pm at Soulbury Village Hall**. Thanks to those owners who have emailed comments that have been circulated and put on Dropbox. I now have to update you on important information which has come to light during the past week and needs to be considered alongside the original briefing note. Please read this alongside the new email from the Land Registry you will find on Dropbox.

Farmhouse Car Park Entrance Area

I'm sorry to tell you that the position of all individual owners and of CMC has become even more complex and significantly worse in the light of new revelations relating to the parcel of land which forms the entrance area to the Farmhouse Car Park.

In the light of Ian Morrison's helpful comments about the area of land hatched brown on the Land Registry Illustrative Plan, I have interrogated the Land Registry further on their original confirmation that this parcel of land was "*unregistered*". After further investigation of adjacent title deeds they have now confirmed that they made a mistake and that this piece of land (marked white on the plan below) which forms the entire entrance area to the Farmhouse Car Park **is in fact registered to M8 Plc** (now trading as QEDG Group Limited but a dormant company), which is a company owned by Martin Darvill. He will be known to some of you as the property developer who owned the Rock Lane Farm site prior to selling it to Thameside in 2006. He still lives at Liscombe Park.



0 2 4 6 8 12 16 20m

Map scale 1:625

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Data last updated 10:00pm 17 JULY, 2014

There are multiple complicated transfers of part and whole land titles across this area going back over 150 years, so it is difficult to be precise about what happened. However it is clear that when M8 Plc acquired the site from the owners of the Liscombe Park Estate (Provide Ltd – now Liscombe Park Limited) in about 2000, their title to this area had a straight boundary line running across the entrance aligned with the current fence line and road edge. But when M8 Plc sold the Rock Lane Farm site to Thameside in 2006, the transfer plan showed the red boundary marking curving to exclude the entrance area to the Car Park. This is the reason for the curious white shaped parcel of land on the above plan. This may have been deliberate or it may have simply been a drafting mistake.

We have all previously believed, based on Thameside's conveyance documents, that the Thameside communal land ownership and the Liscombe Park Limited Access Road shared a contiguous title boundary. It is now clear this is not so. The Land Registry has also evidently not previously recognised that the white area comprised a separate registered title.

Thameside's conveyance documents for all individual ownerships and for the transfer of the communal land clearly shows some of this white area within its title boundary and some of it outside it. Yet it has conveyed all 14 individual properties with their car parking and now proposes the communal land transfer without indicating or acknowledging that there is any problem with legal access over this land. So it is clear that Thameside has made yet another serious mistake.

There is in reality a "*ransom strip*" across the entrance to the Farmhouse Car Park owned by M8 Plc. It's possible that Mr Darvill is currently unaware of this (and it would be sensible for all owners to keep this discussion confidential among ourselves). It's also possible that since the land has been used by owners since 2006 unchallenged and consists of open and not enclosed roadway, the legal principle of "*adverse possession*" could be used by the 14 owners and CMC to challenge any attempt by M8 Plc to now assert its ownership rights here. However this normally requires usage for a 10 year period under the Land Registration Act 2002.

It is clearly the case that this is yet another serious defect by Thameside which must be resolved both to secure the access rights of all 14 owners and before the communal land transfer can be completed.

Two Further Clarifications

In the course of discussion with the Land Registry, we have also received clarification of the following two points we previously identified:

1. The storage cupboard in the Archway is clearly registered as part of Thameside's communal land title and has not been conveyed as part of the

original title to No 1 (now owned by Eileen Davis). It is in effect another area equivalent to those hatched blue on the Land Registry illustrative plan.

2. The two car park areas for No 10 (Malcolm and Julia Wynd) were conveyed as part of their leasehold title and therefore need to be added as a note to the freehold title for the Car Park Area, the same as the other parking spaces previously identified.

Directors Recommendation

The directors and I have discussed the situation further in the light of the above revelations in preparation for the meeting. We have also received further advice from our solicitors which informs the comments below.

The directors have now changed their position and recommend for consideration by all owners at the meeting that Option 1 in the original briefing note should be pursued. **They recommend it is not now appropriate to proceed with any transfer of the communal land in the current circumstances and that all the issues identified to date should be notified immediately to Thameside.** They recognise that this means that no owner would currently be able to sell their property and that no estimate of timetable for resolving this can be provided.

This would require Thameside to meet their legal obligation under the Mediation agreement to transfer a clean and correct title for the communal land immediately. This in turn means that they will have to carry out all the necessary underlying legal transactions to resolve all these issues prior to providing a corrected plan for transfer of the communal land. We would also require them to pay all legal costs arising, including those of individual owners affected.

It is possible (indeed probable) that Thameside will seek to evade some or all these obligations. If and when that is clearly known, we shall need to consider what actions owners individually and CMC collectively need to take. At that point we can consider whether to complete any part of the transfer based on the current Land Registry application and to what extent individual owners / CMC need to take action.

In the meantime I propose to ask the Land Registry for a further 6-month extension to our application, since they have now admitted that they have made mistakes which have compounded the current problem.